

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 2164 of 2017

In the matter of:

An Application under section 115(1) of the
Code of Civil Procedure, 1908

And

In the matter of:

Md. Shafiqul Islam Jespi.

...Petitioner.

-Vs-

Md. Jahangir Alam alias Mona
and others.

...Opposite parties.

Present

Mr. Justice Mamnoon Rahman

None appears

...For the petitioner.

Mr. Sherder Abul Hossain, Adv. with

Mr. Abdul Matin, Adv.

Mr. Sanjoy Kumar Kundu, Adv.

...For the opposite parties.

Heard on: **16.11.2023**

And

Judgment on: **The 23rd November, 2023**

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite party No. 1 to show cause as to why the impugned judgment and order dated 22.01.2017 passed by learned Additional District Judge, Gaibandha, in Miscellaneous Appeal No. 44 of 2015 allowed the appeal reversing the judgment and order dated 29.07.2015 passed by Senior Assistant Judge, Gaibandha, in Miscellaneous Case No. 15 of 2005 allowed the pre-emption Miscellaneous case should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The short facts relevant for the disposal of this rule, is that, the petitioner as pre-emptor filed Miscellaneous Case being No. 15 of 2005 in the court of senior Assistant Judge, Gaibandha impleading the opposite parties as pre-emptee for an order of pre-emption as per section 24 of the Non-agricultural and Tenancy Act, 1949. The case of the petitioner-pre-emptor, is that, the land in Khatian No. 2095 was owned by Ektaruddin. Ektar Uddin died leaving Kabiruddin, opposite party Nos. 11/12 and opposite party Nos. 6 and 7. After the death of Kabiruddin the petitioner along with others remained as heirs. As such, the petitioner is the co-sharer of the holding by way of inheritance also the petitioner purchased two decimals of land from opposite party No. 6 and as such he becomes co-sharer by inheritance as well as by purchase. Subsequently, in the suit land the opposite party Nos. 2 and 3 purchased the property in question from opposite party Nos. 11 and 12 and were in possession. Ultimately, the opposite party Nos. 2 and 3 sold the property to the pre-emptee-opposite party No. 1 on 10.08.2004 vide registered Deed No. 6001 beyond the knowledge of the petitioner which is essentially required by the petitioner. After getting the information the petitioner obtained the certified copy of the deed in question and filed the case under section 24 of the Non-agricultural and Tenancy Act, 1949.

The present opposite parties-pre-emptee contested the case by filing written objection denying all the material allegations made

in the plaint. The case of the opposite parties-pre-emptee, is that, the property is owned by them by *virtue* of a registered deed and it is the house separated by boundary and structures standing thereon and they are enjoying the same after the purchase from opposite party Nos. 2 and 3 who purchased the same from opposite party Nos. 11 and 12 long ago. The further case of the opposite parties-pre-emptee, is that, the opposite party Nos. 2 and 3 offered to sell the property and on 15.12.2003 the sellers entered into an agreement for sale and ultimately they obtained the property by a registered deed which is dwelling house, bounded by a boundary Wall and having all utility connections and the pre-emptor is no way co-sharer as much as the land is totally separated and not comes within the purview of the scope of Non-agricultural and Tenancy Act, 1949.

During trial the court below framed as many as 5(five) issues. The pre-emptor-petitioner adduced 2(two) witnesses and the opposite parties-pre-emptee adduced 4(four) witnesses. Both the parties adduced documentary evidences both oral and documentary which were duly marked as exhibits. The trial court proceeded with the case and ultimately vide the judgment and order dated 29.07.2015 allowed the pre-emption case in favour of the pre-emptor. Being aggrieved by and dissatisfied with the aforesaid judgment and order passed by the trial court the opposite parties-pre-emptee preferred Misc. Appeal being 44 of 2015 before the

District Judge, Gaibandha and the same was heard and disposed of by Additional District Judge, Gaibandha who vide the impugned judgment and order dated 22.01.2017 allowed the appeal and thereby set aside the judgment and order passed by the trial court. Being aggrieved by and dissatisfied with the aforesaid judgment and order passed by the lower appellate court the pre-emptor-petitioner moved before this court and obtained the present rule.

No one appeared on behalf of the petitioner to press the rule though the same has appeared in the list for a considerable time. However, on perusal of the grounds as stated in the application it transpires that the petitioner challenging the order of the lower appellate court on the ground that the lower appellate court failed to consider the materials and evidence placed by the pre-emptor in a lawful manner. The further grounds taken by the petitioner is that the lower appellate court failed to consider the legal evidence as well as misconstrued and failed to appreciate the legal evidence pressed by the pre-emptor as much as failed to notice that the pre-emptor are the co-sharer in the holding.

Mr. Sherder Abul Hossain, the learned Advocate for the opposite party vehemently opposes the rule. He submits that admittedly the opposite party-pre-emptee purchased the land from opposite party Nos. 2 and 3 by a registered deed and the case property is a separated nature which includes residence bounded by boundary Wall with structures standing thereon having all utility

connections which is completely separated and not comes within the definitions of the land as per the Non-agricultural and Tenancy Act, 1949. He further submits that admittedly the opposite party purchased the land from opposite party Nos. 2 and 3 who are also the stranger and purchased the property from opposite party No. 11 and 12. The learned counsel further submits that in the present case is quite different from the pre-emption under the State Acquisition and Tenancy Act and the scope of pre-emption under the Non-agricultural and Tenancy Act 1949 much an error and the petitioner has to show his necessity as much as other incriminating factors for seeking pre-emption of a land guided by the Non-agricultural and Tenancy Act, 1949 which is very much absent in the case in hand. He further submits that the property in question is totally separated dwelling house bounded by specific boundary Wall and having all the utility connections by a separate names. He also submits that the property was purchased by the predecessors of the pre-emptee from the opposite party Nos. 11 and 12 within the knowledge of the petitioner and no attempt was taken by the petitioner at that stage. The learned counsel pointed out that the basic claim relates to Khatian No. 2095 as because not only in the schedule of the application but also in the deed it has been stated that Khatian No. 2095 relates to Dag No. 6263 but the petitioner miserably failed to produce the said Khatian rather mentioned two DP Khatians namely 3238 corresponding to 6413 and 1839 corresponding to

6412 stands in the name of the opposite party Nos. 2 and 3 and without the said Khatian No. 2095 it is absolutely difficult to consider and determine the co-sharership in the property in question. Hence, the learned counsel prays for discharging the rule.

I have perused the impugned judgment and decree passed by the trial court, lower appellate court, revisional application, grounds taken thereon, papers and documents annexed herewith, L.C. Records, provisions of law and heard the learned counsel for the opposite party.

On perusal of the same, it transpires that this is a case under section 24 of the Non-agricultural and Tenancy Act, 1949 wherein the petitioner is claiming pre-emption as co-sharer by purchase as well as inheritance. The simple case as stated by the petitioner is that the property belongs to Khatian No. 2095 owned by Ektaruddin and the heirs of the said Ektaruddin. The petitioner also claimed that he purchased two decimals of land from one of the co-sharer and as such he becomes the co-sharer by purchased land. Since the opposite party-pre-emptee purchased the land from opposite party Nos. 2 and 3 and the land comes within the Khatian No. 2095 as such the plaintiff has the right to get an order of pre-emption. The opposite party-pre-emptee contested the same denying all the material allegations as made in the plaint.

It appears that during trial both the parties adduced evidence both oral and documentary. While determining a case for pre-

emption either under the Non-agricultural and Tenancy Act or State Acquisition and Tenancy Act the court has to see the nature of the land whether the same is contiguous or adjacent and whether the claimant is a co-sharer either by way of purchase or by inheritance as defined by the aforesaid law. In the present case in hand the case is under section 24 of the Non-agricultural and Tenancy Act, 1949 it means land relates to urban area.

It appears from the evidence and materials on record that the applicant-petitioner adduced two Khatians and the sale deed in question. Admittedly, the sale deed was obtained by the opposite party-pre-emptee from opposite party Nos. 2 and 3. The opposite party Nos. 2 and 3 purchased the land from opposite party Nos. 11 and 12 and being strangers opposite party Nos. 2 and 3 after purchased staying there at their residence with specific structures and specific boundary Wall and also with all the utilities from the respective authorities. There is no denial regarding the transfer of the property from the opposite party Nos. 2 and 3 by a registered sale deed. It is the duty of the pre-emptor-applicant to show that he/she is the co-sharer of the land since the case is under section 24 of the Non-agricultural and Tenancy Act, 1949 by credible evidence. In the present case in hand the petitioner-pre-emptor adduced two documents, namely two D.P. Khatians which were recorded in the names of opposite party Nos. 2 and 3. But on meticulous perusal of the papers and documents, it transpires that in

the schedule of the application as well as deed in question Khatian No. 2095 was mentioned and also the corresponding dag was 6263 but no such paper was adduced in any manner by the petitioner rather the petitioner adduced two Khatians mentioned hereinabove having no nexus with Khatian No. 2095 corresponding to dag No. 6263. While dealing with the case in hand the lower appellate court held as follows;

অগ্রক্রম দরখাস্তের সম্পত্তি অনুযায়ী নালিশী সম্পত্তি ২০৯৫ নং খতিয়ানের জমি। প্রার্থীপক্ষ ডি.পি. ৩২৩৮ অর্থাৎ ৬৪১৩ নং খতিয়ান এএং ডি.পি. ১৮৩৯ অর্থাৎ ৬৪১২ নং খতিয়ান দাখিল করিয়াছেন (ডিপি)। কিন্তু প্রার্থীপক্ষ তাহার দাখীকৃত জোত অর্থাৎ ২০৯৫ নং খতিয়ান দাখিল করেন নাই। শুধুমাত্র ২টি ডিপি খতিয়ান দাখিল করিয়াছেন যে খতিয়ানের মালিক ২/৩ নং প্রতিপক্ষ। যদি ২/৩ নং প্রতিপক্ষ ডিপি খতিয়ানের মালিক হয় তাহা হইলে প্রার্থীপক্ষ কি কারনে ১৩ জনকে প্রতিপক্ষ করিল তাহা প্রোধগম্য নয়। যদি ২০৯৫ নং খতিয়ান থাকিত বা দাখিল থাকিত তাহা হইলে এই জোতের অর্থাৎ ২০৯৫ নং খতিয়ানের ওয়ারিশ, জের ওয়ারিশ এদের অস্তিত্ব প্রচার-প্রশ্লেষণ হইত। তপশীলেও প্রার্থীপক্ষের ২০৯৫ নং খতিয়ানের ৬২৬৩ দাগের কথা উল্লেখ করিয়াছে। এই দাগে ০৯ শতক সম্পত্তি দাখী করিয়াছে। কিন্তু ২০৯৫ নং খতিয়ান দাখিল নাই। নালিশী দলিলের তপশীলেও দেখা যায় আর.এস. খতিয়ান নং ২০৯৫, দাগ নং-৬২৬৩। কিন্তু প্রার্থীপক্ষ ভ্রমাত্মকভাবে ডিপি ১৮৩৯ অর্থাৎ খতিয়ান নং ৬৪১২ এএং ডিপি ৩২৩৮ অর্থাৎ খতিয়ান নং ৬৪১৩ এই দুই খতিয়ান উল্লেখে মামলা করিয়াছে বাহা নালিশী দলিলের তপশীলের সংগে পুরাপুরি সামঞ্জস্যপূর্ণ নয়। এই অপ্রস্থায় নালিশী সম্পত্তিতে অর্থাৎ মোকদ্দমাটিতে পক্ষদোষ আছে বা নাই এই গুরুত্বপূর্ণ প্রচার প্রিয়টি মোটেও সঠিকভাবে নিষ্পত্তি হয় নাই। কোনরূপ ভ্রুটি

রাখিয়া প্রার্থীর অগ্রক্রয়ের দরখাস্ত মঞ্জুর করা সমীচীন নয়। কিন্তু নিম্ন আদালত তাহাই করিয়াছেন। প্রার্থীপক্ষ মূল অপ্রস্থান থেকে সরিয়া গিয়া ভিন্নতর ডিপি খতিয়ানের অপ্রতারনা করিয়া এই অগ্রক্রয়ের দরখাস্ত আনয়ন করিয়াছে। াহাই হউক, আপীলকারীপক্ষের দাখীল অনুপ্রায়ী মোকদ্দমাটিতে অর্থাৎ নালিশী দলিলের পূর্বে দলিল সূত্রে ায়নানামা হয় ঐ ায়নানামায় প্রার্থী অর্থাৎ রেসপনডেন্টপক্ষ স্বাক্ষর করিয়াছিল িধায় তাহার অগ্রক্রয়ের দরখাস্তটি এসটোপেল দ্বারা ারিত হয় া স্বীয় কার্যাদি দ্বারা ারিত হয় িষয়টি সঠিক নয়। ায়নানামায় স্বাক্ষর করিলে া নলেজে থাকার পরেও অগ্রক্রয়ের দরখাস্ত আনয়নে কোন াধা থাকে না। এখানে প্রার্থীপক্ষ অর্থাৎ রেসপনডেন্টপক্ষের অগ্রক্রয়ের দরখাস্তটি ভ্রমাত্মক া ফাইনাল খতিয়ান দাখিল না করিয়াই া তপশীল ার্গিত খতিয়ান া অগ্রক্রয়ের দরখাস্ত ার্গিত খতিয়ান দাখিল না করায় প্রার্থীর অগ্রক্রয়ের দরখাস্তটি মঞ্জুরযোগ্য ছিল না া নয়। নিম্ন আদালত ভ্রমাত্মকভাবে প্রার্থীর অগ্রক্রয়ের দরখাস্ত মঞ্জুর করেন। অধিকন্তু নিম্ন আদালত তামাদি িষয়ে কোন িচার্চ িষয় গঠন করেন নাই। এই অপ্রস্থায়, নিম্ন আদালত সঠিকভাবে িচার্চ িষয় গঠন ও নিষ্পত্তি করেন নাই তাহা ালা ায়।

So, it appears that while dealing with the appeal the lower appellate court *vividly* discussed the scope of pre-emption in the present case in hand and came to a clear conclusion that in the absence of Khatian No. 2095 it is difficult to determine the nature of co-sharer and other heirs as much as the question of defect of parties. In numerous cases this court as well as our apex court came to a conclusion that right of pre-emption is a special right and such right allow a person to take away the valuable right of property obtained by some person through purchase and in such type of

cases a heavy duty cast upon the petitioner to prove his case beyond all reasonable doubt which is very much absent in the case in hand. As such, I am of the view that the lower appellate court in the case in hand committed no error, which requires no interference by this court.

Accordingly, the instant rule is discharged without any order as to cost. The impugned judgment and order passed by the lower appellate court is hereby affirmed and the pre-emption case be dismissed.

Send down the L.C. Records with a copy of the judgment to the concerned court below, at once.

(Mamnoon Rahman,J:)

Emdad.B.O.